

**INSTRUCTIONS:**

- Submit your application to the Court where you were convicted. (NOTE: There is no application fee.)
- If you submit in person, bring a valid government-issued photo ID proving you were the defendant in the case.

**DISCLAIMER:** When the records concerning a conviction are expunged, the case information is unavailable to anyone except: 1) a law enforcement agency to which you are applying for a job as a police or peace officer, or 2) a pistol permit licensing officer/bureau to which you are applying for a pistol permit. Please be advised that, if the arrest and conviction records are destroyed, the Division of Criminal Justice Services (DCJS) will no longer have any record of the case and will be unable to verify that the conviction was vacated, the case dismissed, and the record expunged. In other words, it will appear that the events never occurred. Please consider this consequence carefully, and you may wish to consult with an attorney.

### **APPLICATION TO DESTROY EXPUNGED MARIHUANA CONVICTION RECORD**

I had a marijuana or cannabis conviction under sections 221.05, 221.10, 221.15, 221.20, 221.35, 221.40, 220.03, 220.06, 222.10, 222.15, 222.25 or 222.45 that has been expunged pursuant to sections 160.50(3)(k) and 160.50(5)(a) or 440.46-a of the Criminal Procedure Law. I am requesting that the arrest, prosecution and DCJS criminal history records for my expunged marihuana conviction are destroyed according to the provisions of Criminal Procedure Law sections 1.20(45) and 160.50(5)(a). I submit the following case information for the Court to process my application (**NOTE: this information is required**):

**Name on Docket/Case:** Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam III  
First Middle Last

**Aliases (if any):** \_\_\_\_\_

**Date of Birth:** 1991-04-17  
(Enter in MM/DD/YYYY format) month day year

**County where convicted:** \_\_\_\_\_

**Court where convicted:** ☐ Supreme Court ☐ City Court, City of \_\_\_\_\_  
(Check one only) ☐ County Court ☐ Town Court, Town of \_\_\_\_\_  
☐ District Court ☐ Village Court, Village of \_\_\_\_\_

**IMPORTANT:** If you do not have the following case information, check the applicable "unknown" box.

**Court Docket/Case Number:**

0123-45-2026-CR-900123.00-AB-CDE/2201 ☐ Unknown

**CJTN/Criminal Justice Tracking Number** (NOTE: If you were not fingerprinted in this case, write NONE.):

\_\_\_\_\_ ☐ Unknown

**NYSID/New York State Identification Number** (NOTE: If you were not fingerprinted in this case, write NONE.):

\_\_\_\_\_ ☐ Unknown

**My mailing address and contact information for correspondence regarding this application is:**

Address: 12345 Southwest Grandview Boulevard Northeast, Building 7 NY 12207-9999  
Building Number & Street Name or P.O. Box City/Town State Zip Code

Cell Phone (optional): 518-555-0142 extension 44821

Email Address (optional): \_\_\_\_\_

I understand that the above information (except Cell Phone and Email Address) is **required** for the Court to process my application and that my application cannot be processed if any required information is missing or incorrect.

**DEFENDANT'S AFFIRMATION**

I affirm this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

\_\_\_\_\_  
 Defendant Signature

**\*\*\*FOR COURT USE ONLY – DO NOT WRITE BELOW THIS LINE\*\*\***

| YES                                                                                                                  | NO                    | APPLICATION PROCESSING CHECKLIST                                                                                                                                                                                                      |
|----------------------------------------------------------------------------------------------------------------------|-----------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="radio"/>                                                                                                | <input type="radio"/> | 1. Applicant provided proper ID if submitted in person or application is notarized if submitted via EDDS or by mail.                                                                                                                  |
| <input type="radio"/>                                                                                                | <input type="radio"/> | 2. All required information is completed, and the court clerk has checked and verified the information is correct.                                                                                                                    |
| <b><i>If the answer is "NO" for item 1 or 2 above, stop here and do not process the application any further.</i></b> |                       |                                                                                                                                                                                                                                       |
| <input type="radio"/>                                                                                                | <input type="radio"/> | 3. Eligible marijuana/cannabis charge is sealed/expunged in case management system pursuant to CPL 160.50(3)(k) and 160.50(5)(a) or CPL 440.46-a. ( <b>NOTE: See instructions for sealing in ADBM, CRMS, CRIM, DCRIMS and SAMS.</b> ) |
| <input type="radio"/>                                                                                                | <input type="radio"/> | 4. "Application for Destruction Submitted" docket/charge comment is entered in case management system.                                                                                                                                |
| <input type="radio"/>                                                                                                | <input type="radio"/> | 5. Application is scanned/uploaded to case management system and/or placed in case file, as applicable.                                                                                                                               |
| <input type="radio"/>                                                                                                | <input type="radio"/> | 6. Copies of application sent to prosecutor, law enforcement agencies and DCJS as applicable for further processing.                                                                                                                  |